

Smt. Neelam v. Madhyanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court (Lucknow Bench) · Division Bench · 8 July 2025 · 2025:AHC-LKO:38505-DB · WRIT - C No. 6332 of 2025 · **Writ disposed of; no Article 226 interference; new connection refused until dues cleared.**

HEADNOTE

A new electricity connection cannot be granted under clause 4.4 of the U.P. Electricity Supply Code, 2005 unless outstanding dues on the premises are cleared. Where the premises were earlier occupied by another person and dues remain, the High Court will not interfere under Article 226; the applicant may pursue other remedies.

FACTUAL SUMMARY

Smt. Neelam sought a new electricity connection at premises previously occupied by another person, on which electricity dues remained outstanding. The licensee, Madhyanchal Vidyut Vitran Nigam Ltd., opposed the petition. Counsel for the respondents stated that the petitioner had herself given in writing that her tenant had committed theft of electricity. She invoked the High Court's writ jurisdiction under Article 226 seeking a direction to grant the connection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

new connection barred by outstanding dues on premises

HOLDING

Unless outstanding dues on the premises are cleared, a new electricity connection cannot be granted in view of clause 4.4 of the U.P. Electricity Supply Code, 2005. The writ was not a fit case for interference under Article 226 of the Constitution. ¶ 2-3

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond A new electricity connection cannot be granted under clause 4.4 of the U.P. Electricity Supply Code, 2005 unless outstanding dues on the premises are cleared.. ¶ 2-3